

25CMCV02205 25CMCV02205

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-06-30

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Defendant Martin Luther King Jr. Healthcare Corporation dba Martin Luther King Jr. Community Hospital ("Movant") demurs to Plaintiff's entire complaint on the grounds that it pleads no facts against Movant and that the complaint is unintelligible. Movant also moves to strike Plaintiff's claim for punitive damages on the grounds that Plaintiff requires court permission to make a prayer for punitive damages in a suit arising out of claims against a health care provider for medical negligence, and that Plaintiff has not obtained court permission. Plaintiff failed to file opposition to the demurrer or motion to strike punitive damages.

The court cannot identify the facts underlying the complaint, except that it appears to involve the defendants' alleged negligence as medical providers. Furthermore, no facts are alleged as to Movant. Plaintiff has therefore failed to set forth the essential facts of his case with sufficient particularity to put Movant on notice of the nature, source, and extent of his cause of action.

The court will therefore sustain Movant's demurrer to the entire complaint. The court will give Plaintiff one chance to amend his complaint to adequately allege a cause of action. Any amended complaint must be filed and served not later than July 27, 2026.

Based on the court's reading of the complaint, it appears to concern the defendants' negligence in a medical context. Under Code of Civil Procedure § 425.13, "In any action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed." No such order has been entered. The court will therefore strike Plaintiff's request for punitive damages from the complaint, without leave to amend.

Movant to give notice.